

the defendant's identity prior to filing the complaint, but has forgotten, "the plaintiff must review readily available information that discloses the defendant's identity to invoke the section 474 relation-back doctrine." (*Woo v. Superior Court* (1999) 75 Cal. App. 4th 169, 180.) Such review is not a significant burden and does not impose a duty of inquiry on plaintiffs who never knew the defendant's identity. (*Ibid.*)

The Complaint asserts that the true names of defendants sued as Does are unknown to plaintiff. (Comp, ¶ 6.) Does 1-25 are persons whose capacities are unknown to Plaintiff. (*Id.*) On January 13, 2026, Plaintiff filed the Doe Amendment naming Hemet Homes. The Doe Amendment indicates that, "[u]pon filing the complaint herein, plaintiff(s) being ignorant of the true name of a defendant and having designated said defendant in the complaint by the fictitious name of Doe 1, and having discovered the true name of the said defendant to be Hemet Homes, LLC hereby amends the complaint by inserting such true name in place and stead of such fictitious name wherever it appears in said complaint.

Hemet Homes argues that Plaintiff was not genuinely ignorant of Hemet Homes' identity as her landlord and owner/manager of the premises based on records from *Griffin v. Barnett, et al.*; Case No. CVSW2301165. The First Amended Complaint in that case lists Alex Barnett and Hemet Homes as defendants. (RJN, Ex. B.) Plaintiff, in pro per, alleged that Barnet and Hemet Homes were the owners of the premises. (*Id.* ¶ 2.) In that case, Plaintiff alleged that the floor in her rental unit was maintained in an unsafe condition. (*Id.* at ¶ 9.) The First Amended Complaint asserted nine causes of action, including one cause of action for general negligence. It is clear from this pleading that Plaintiff was aware of Hemet Homes' identity and ownership of the premises. Counsel for Plaintiff claims that Plaintiff was living out of state at the time the Complaint in the present action was filed and did not have access to her records, including the Lease. However, there is no evidence based on personal knowledge to substantiate this claim. Based on the court records from the prior litigation between the parties, it appears that Plaintiff had knowledge of the identity of Hemet Homes and its connection to the subject premises.

4.

CASE #	CASE NAME	HEARING NAME
CVME2502919	BEARDEN VS NIJJAR	DEMURRER

Tentative Ruling: OVERRULE the demurrer.

DENY the motion to strike.

Defendant to file their answer within 30 days.

Plaintiffs Karyn Rachel Bearden, Lavennia Anette Bearden and Henry Sparks ("Plaintiffs") allege they are a family and have been tenants at 222 N Mayflower Street, Apt. 1 in Hemet ("Subject Property") since March 2019. Plaintiffs allege Defendants Michael Nijjar ("Nijjar"), Pama Management, Inc. dba IE Rental Homes and Does 1-20 ("Defendants") were "aware of, authorized, and/or ratified Plaintiffs' occupancy of the Subject Property during the term of each Defendants' ownership, management and/or control of the Subject Property."

Plaintiffs allege that the Subject Property is maintained in a substandard, uninhabitable condition. Plaintiffs assert that the Property suffers from rodent and cockroach infestations, lack of water pressure, missing smoke detectors, hazardous wiring, mold, water damage and flood severe rodent, vermin, cockroach/pest infestations, mold, lack of water, lack of electricity, leaking AC unit, no smoke detectors, no lock on back door, no light fixtures, no cover on electrical units and broken windows posing a safety hazard. Plaintiffs assert that they have informed Defendants of the defects, but they refuse to repair the premises.

On March 7, 2025, Plaintiffs filed their complaint alleging 10 causes of action: 1) Breach of Warranty of Habitability (Civ. Code, §§ 1941, 1941.1); 2) Breach of Implied Warranty of Habitability; 3) Violation of Civil Code § 1942.4; 4) Negligence; 5) Private Nuisance; 6) Intentional Infliction of Emotional Distress; 7) Breach of Contract; 8) Breach of Covenant of Quiet Enjoyment; 9) Breach of the Covenant of Good Faith and Fair Dealing; and 10) Violation of Business & Professions Code § 17200, et seq.

On June 11, 2025, Plaintiffs filed a fictitious name amendment to the complaint naming Defendant Group IV Pomona Properties LTD (“Group IV Pomona”) as Doe 3.

Defendant Nijjar now demurs to each cause of action in the complaint on the ground each fails to state facts sufficient and is uncertain. (C.C.P., §§ 430.10(e), (f).) Nijjar argues the Complaint improperly lumps him together with the other defendants, without articulating any specific conduct he undertook personally. He states the Complaint is completely silent as to any personal actions or decisions made by Nijjar regarding the conditions of the Property. Even if they had alleged alter ego, their allegations would not be sufficient to pierce the corporate veil.

Nijjar also separately moves to strike Plaintiffs allegations and prayer for punitive damages. (C.C.P., §§ 435-436, Civ. Code, § 3294.)

In opposition, Plaintiffs argue their complaint is not uncertain because Plaintiffs have alleged that Defendants, jointly contributed to the substandard conditions at issue. The Complaint alleges each cause of action against all defendants and alleges joint and successive ownership, management, and agency and they are not required to prove precise ownership or allocation of responsibility at the pleading stage. They argue personal liability for one’s own conduct does not require alter ego or veil piercing. Nijjar’s factual denials of liability in the demurrer cannot be accepted at this stage. Plaintiffs allege that each of the claims is properly alleged.

Plaintiffs also oppose the motion to strike punitive damages arguing their allegations of malice are sufficient to support the prayer.

In reply to both the demurrer and motion to strike, Nijjar re-argues the points presented in their moving papers.

Nijjar’s demurrer does not specifically challenge any of the 10 causes of action, instead he argues there are no facts specific to him as an individual. However, all facts are alleged against “Defendants.” which includes Nijjar and includes him in various

capacities, including as owner, agent and employment of other defendants, such that it is a proper defendant. (E.g., Comp., ¶ 4.) “The general allegation of agency is one of ultimate fact, sufficient against a demurrer.” (*Kiseskey v. Carpenters’ Trust for So. Cal.* (1983) 144 Cal.App.3d 222, 230.) Plaintiffs have alleged that “Defendants” and participated in the acts and omissions giving rise to liability, acted as agents and employees of one another, and exercised ownership and control over the Subject Property. (Comp. ¶¶ 4–9, 14–16.) Plaintiffs have also alleged “Defendants” jointly contributed to the substandard conditions at issue (Comp., ¶¶ 1-52, 65-68, 107-128.) The causes of action as brought against Nijjar are sufficiently alleged that he can reasonably determine the general crux of the allegations. Nijjar does not otherwise identify any cause of action that is missing allegations to state a cause of action against him. Rather, he appears to be challenging the truth of the allegations, which is improper at the demurrer stage.

To the extent Nijjar argues that alter ego is not adequately alleged, he cites to no alter ego allegations, nor does he cite to any authority requiring it. Plaintiffs have not alleged Nijjar is liable based on alter ego liability. As discussed above, they have alleged all defendants participated in the acts and omissions alleged; acted as agents of one another; authorized and ratified the conduct; owned, managed, operated, and/or controlled the Property; constituted landlords under the lease; knew of Plaintiffs’ occupancy; received notice of the defects; failed to repair; and continued collecting rent. (Compl. ¶¶ 2, 4–8, 14–17, 30, 36–41, 47–50, 69–70, 76–78, 81–82, 87, 94–100, 111–113, 117–128, 133–154, 156–190.) The allegations are taken as true and are sufficient for pleading purposes.

To state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code Section 3294. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.) These statutory elements include allegations that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code § 3294, subd. (a).)

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff. In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. In ruling on a motion to strike, courts do not read allegations in isolation.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) “The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” (*Grieves v. Superior Ct.* (1984) 157 Cal.App.3d 159, 166.)

A tenant may state a cause of action in tort against his landlord for damages resulting from a breach of the implied warranty of habitability. (*Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 918-19; see also *Smith v. David* (1981) 120 Cal.App.3d 101, 112 n.3 [a tenant “may seek general and punitive damages for . . . breach of warranty [of habitability]”).) The court in *Stoiber* found that plaintiff stated sufficient facts to support exemplary damages when she “alleged that defendant had actual knowledge of defective

conditions in the premises including leaking sewage, deteriorated flooring, falling ceiling, leaking roof, broken windows, and other unsafe and dangerous conditions . . . [and] alleged defendants ‘In maintaining said nuisance, . . . acted with full knowledge of the consequences thereof and the damage being caused to plaintiff, and their conduct was willful, oppressive and malicious.’ (*Stoiber, supra*, at 920 [citation omitted].) “Inasmuch as Civil Code section 3294 requires as a prerequisite to the recovery of punitive damages that the defendant ‘has been guilty of oppression, fraud, or malice,’ the cases have uniformly recognized that proof of negligence, even gross negligence, or recklessness is insufficient to warrant an award of punitive damages.” (*Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, 87.)

Plaintiffs pleaded sufficient facts to support their prayer for punitive damages. They allege that Defendants had knowingly subjected them to defective conditions in the premises, including pest and rodent infestations, electrical and structural hazards, water damage, and security failures, and continued to ignore repair obligations while collecting rent and exposing tenants to dangerous conditions. (Comp. ¶¶ 19, 22–23, 24–39, 45–49, 50–58, 69–70, 86–93, 126–133, 142–154.) Plaintiffs further allege that Defendants had actual notice of these defects through tenant complaints and inspections but intentionally failed to act for years, subjecting Plaintiffs to physical illness, anxiety, humiliation, and loss of use and value in their leasehold. (Comp. ¶¶ 126–133, 149–150.) This is sufficient at the pleadings stage.

5.

CASE #	CASE NAME	HEARING NAME
CVME2502919	BEARDEN VS NIJJAR	MOTION TO STRIKE

Tentative Ruling: See above.

6.

CASE #	CASE NAME	HEARING NAME
CVME2600116	INTERINSURANCE EXCHANGE OF THE AUTOMOBILE CLUB VS BERRY	PETITION FOR SUPERIOR COURT CASE NUMBER FOR THE PURPOSE OF ISSUING SUBPOENAS TO WITNESS FOR DOCUMENTS

Tentative Ruling: : Case was dismissed June 3, 2026.

7.

CASE #	CASE NAME	HEARING NAME
CVME2604572	ALLY BANK VS GARRETT CONSTRUCTION LLC	NOTICE OF WRIT OF APPLICATION FOR WRIT OF POSSESSION

Tentative Ruling: Writ of Possession is GRANTED.